

Remedies of
judgment
creditor.

Proviso as to
notice.

All deeds, devi-
ses, &c., exe-
cuted after 1st
January, 1851,
to be regis-
tered.

ment, or at any time afterwards, be seized, possessed or entitled, for any estate or interest whatever at law or in equity, whether in possession, reversion, remainder or expectancy, or over which such person shall at the time of registering such judgment, or at any time afterwards have any disposing power, which he might without the assent of any other person exercise for his own benefit, and shall be binding against the person against whom judgment shall be so entered upon and registered, and against all persons claiming under him after such judgment and registry, and shall also be binding as against the issue of his body, and all other persons whom he might without the assent of any other person cut off and debar from any remainder, reversion or any other interest, in or out of the said lands, tenements, or hereditaments; and that every judgment creditor shall have such and the same remedies in a Court of Equity against the hereditaments so charged by virtue of this Act or any other part thereof as he would be entitled to in case the person against whom such judgment shall have been so entered up and registered, had power to charge the said hereditaments, and had by writing under his hand agreed to charge the same with the amount of such judgments--debt and interest; and all such judgments shall be claimed and taken to be valid, and effectual according to the priority of registering such certificates. *Provided nevertheless, that nothing therein contained shall be deemed or taken to alter or affect any doctrine of Courts of Equity, whereby protection is given to purchasers for valuable consideration without notice.*

3. And be it enacted, That after any Grant from the Crown of any lands in Upper Canada, and Deed Patent thereof issued, every deed, devise, or other conveyance which shall be executed at any time after the first day of January, one thousand eight hundred and fifty-one, whereby any lands, tenements or hereditaments in Upper Canada may be in any wise affected in Law or Equity, shall be adjudged fraudulent and void, not only against any subsequent purchaser or mortgagee for valuable consideration, but also against a subsequent judgment creditor, who shall have registered a certificate of his judgment, unless such memorial be registered as by the said first recited Act* is specified before the registering of the memorial of the deed, devise or conveyance, or the certificate of the judgment, under which such subsequent purchaser, mort-

* This is the Registry Act of 1846, 9 Vic. Ch. 34.

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